

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 16, 2018

Honorable Mark Bacciarini
Judge of the Superior Court
County of Merced
2260 N Street
Merced, CA 95340

Re: Grissom, Sean Emory
CDC No.: AY1831
Case No.: CRM027056A
Date of Sentence: September 14, 2015

Dear Honorable Mark Bacciarini:

The purpose of this letter is to provide the court with authority to resentence Sean Emory Grissom pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Grissom was sentenced in 2015, and was convicted of section 245, subdivision (a)(1), Assault: Deadly Weapon. The trial court sentenced inmate Grissom on September 14, 2015. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Grissom's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Grissom's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Information

cc: Honorable Donald J. Proietti, Merced County Presiding Judge
Merced District Attorney
Public Defender

This e-copy is the official court record (GC68150).

Ay 1831

FELONY ABSTRACT OF JUDGMENT—DETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: Merced		PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Sean Emory Grissom		DOB: 10-1-1983	CRM027056A -A	FILED 9-15-15 MERCED SUPERIOR COURT By: <i>[Signature]</i> Deputy
AKA:		CII NO.:		BOOKING NO.: 2013-00001738	CRM026593 -B	
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT ☐ AMENDED ABSTRACT		NOT PRESENT		CRM02558 -C		
DATE OF HEARING September 14, 2015		DEPT. NO. Courtroom 1		JUDGE Mark Bacciarini	CRM02558 -D	
CLERK Danielle Santos		REPORTER Denisa Dunbar		PROBATION NO. OR PROBATION OFFICER Julie Horal		☐ IMMEDIATE SENTENCING
COUNSEL FOR PEOPLE Ilia McKinney, Deputy District Attorney				COUNSEL FOR DEFENDANT Mark Johnson, Contract Public Defender ☒ APPOINTED		

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
(number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YR.)	JURY	COURT	PLEA	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE TO VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (REFER TO (b)(6))	604 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
																			YRS.	MO.
A-1	PC	245(a)(1)	Assault: Deadly Weapon	2013	05 / 21 / 15	X			M			M							03	00
A-2	PC	245(a)(4)	Assault: likely produce GB	2013	05 / 21 / 15	X			M	X									(03)	(00)
A-3	PC	186.22(a)	Street Gang Act	2013	05 / 21 / 15	X												X		
B-1	HS	11379(a)	Transport/Sell Cont. Subst.	2013	09 / 08 / 15			X	L	X									(02)	(00)
C-1	HS	11370.1(a)	Possess Cont. Sub. Armed	2012	09 / 08 / 15			X	L	X									(02)	(00)

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
A-1	PC12022.7(a)	Y03	PC186.22(b)(1)(C)	Y10			13 00
A-2	PC12022.7(a)	"S"	PC12022(b)(1)	"S"	PC186.22(b)(1)(A)	(Y03)	(03) (00)

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. Defendant sentenced ☒ to prison commitment per PC 1170(a), 1170(h)(3), or 1170.1(a) ☐ to county jail per PC 1170(h)(1) or (2)
☐ per PC 667(b)-(i) or PC 1170.12 (strike prior)
☐ per PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. Defendant ordered to report to local parole office upon release.

5. INCOMPLETE SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: _____

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME: 16 00

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

Page 1 of 2

FELONY ABSTRACT OF JUDGMENT—DETERMINATE

Penal Code,
§ 1213, 1213.5

PEOPLE OF THE STATE OF CALIFORNIA vs.

DEFENDANT: Sean Emory Grissom

CRM027056A

-A

CRM026593

-B

CRM025581

-C

-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fines:

Case A: \$4,800.00 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$4,800.00 per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.Case B: \$600.00 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$600.00 per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.Case C: \$600.00 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$600.00 per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.Case D: \$ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution FundCase B: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution FundCase C: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution FundCase D: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund☐ *Victim name(s), if known, and amount breakdown in item 13, below. ☐ *Victim name(s) in probation officer's report.

c. Fines:

Case A: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offenseCase B: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offenseCase C: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offenseCase D: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$200.00 per PC 1465.8.

e. Criminal Conviction Assessment: \$150.00 per GC 70373.

10. TESTING: ☐ Compliance with PC 296 verified ☐ AIDS per PC 1202.1 ☐ other (specify):11. REGISTRATION REQUIREMENT: ☒ per (specify code section): PC186.30 as to case A HS11590 as to case B & C.12. ☐ MANDATORY SUPERVISION: Execution of a portion of the defendant's sentence is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows (specify total sentence, portion suspended, and amount to be served forthwith):

Total: Suspended: Served forthwith:

13. Other orders (specify): Defendant is advised of his Appellate Rights.

16. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	1043	907	136
B	1873	937	936
C	312	156	156
D			
Date Sentence Pronounced		Time Served in State Institution	
09 14 2015		DMH	CDC
		CRC	

14. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per 1203c.

Defendant's race/national origin: White

15. EXECUTION OF SENTENCING IMPOSED

a. ☒ at initial sentencing hearing A, B & Cb. ☐ at resentencing per decision on appealc. ☐ after revocation of probationd. ☐ at resentencing per recall of commitment (PC 1170(d).)e. ☐ other (specify):17. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.☐ county jail ☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

DATE

September 15, 2015